

MASTER SERVICES AGREEMENT

1. Definitions and Interpretation

1.1 The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised.

1.2 The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues.

1.3 The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request.

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2. Commencement and Term

2.1 Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice.

2.5 This Agreement shall commence on the Effective Date and shall continue for an initial term of three (3) years, after which it shall renew automatically for successive periods of twelve (12) months unless terminated in accordance with clause 22.

2.2 Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement.

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3. Supply of Services

3.1 The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires.

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4. Service Levels

4.1 Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law.

4.5 The Supplier shall achieve system availability of not less than 99.5% in each calendar month, measured in accordance with Schedule 2.

4.2 Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice.

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5. Customer Obligations

5.1 The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request.

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6. Supplier Personnel

6.1 Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement.

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7. Change Control

7.1 The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues.

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8. Subcontracting

8.1 Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement.

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9. Charges

9.1 The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised.

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10. Payment Terms

10.1 Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice.

10.5 The Customer shall pay each undisputed invoice within forty-five (45) days of receipt. Late payments shall bear interest at four per cent (4%) per annum above the Bank of England base rate.

10.2 Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement.

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11. Audit Rights

11.1 The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires.

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12. Intellectual Property

12.1 Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law.

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13. Confidentiality

13.1 The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request.

13.5 Each party shall keep the other party's Confidential Information secret for the term of this Agreement and for five (5) years after its expiry.

13.2 The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires.

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14. Data Protection

14.1 Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement.

14.5 The Supplier shall notify the Customer of any Personal Data Breach without undue delay and in any event within twenty-four (24) hours of becoming aware of it.

14.2 Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law.

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15. Security

15.1 The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues.

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16. Warranties

16.1 Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement.

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17. Limitation of Liability

17.1 The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised.

17.5 Subject to clause 18.4, each party's total aggregate liability arising under or in connection with this Agreement shall not exceed £2,500,000 in any Contract Year. Neither party excludes liability for death or personal injury caused by negligence or for fraud.

17.2 The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues.

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18. Indemnities

18.1 Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice.

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19. Insurance

19.1 The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires.

19.5 The Supplier shall maintain professional indemnity insurance with a limit of not less than £5,000,000 per claim.

19.2 The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised.

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20. Force Majeure

20.1 Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law.

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21. Business Continuity

21.1 The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues. Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request.

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22. Termination

22.1 Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement. The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement.

22.5 Either party may terminate this Agreement for convenience by giving the other party not less than ninety (90) days' written notice. Either party may terminate immediately if the other commits a material breach which is not remedied within thirty (30) days of written notice.

22.2 Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law.

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23. Consequences of Termination

23.1 The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues.

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24. Dispute Resolution

24.1 Each party shall perform its obligations under this Agreement with reasonable skill, care and diligence in accordance with good industry practice. The Supplier shall maintain complete and accurate records relating to the Services and shall make them available to the Customer on reasonable request. Any change to the scope of the Services shall be agreed in writing through the change control procedure set out in this Agreement.

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25. Governing Law and Jurisdiction

25.1 The Customer shall provide the Supplier with timely access to such information, premises and personnel as the Supplier reasonably requires. Each party shall comply with all applicable laws, regulations and codes of practice in connection with the performance of this Agreement. The

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25.5 This Agreement and any dispute arising from it shall be governed by the laws of England and Wales, and the courts of England shall have exclusive jurisdiction.

25.2 The Supplier shall ensure that all personnel engaged in the Services are suitably qualified, experienced and supervised. Nothing in this clause shall restrict either party from exercising any right or remedy available to it under this Agreement or at law. The parties shall meet at regular intervals to review the performance of the Services and to resolve any operational issues.

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